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Women and Violence in Africa

Peace A Medie

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Abstract

Violence, in all of its forms, touches girls and women's lives in Africa. While there is evidence that girls and women do participate in violence, research has shown that a significant proportion of them have also been victims. Violence against women describes violence inflicted on girls and women because of their gender and includes femicide, rape, intimate partner violence, and human trafficking. It also includes harmful practices such as female genital mutilation and early marriage. While it is a global problem, the levels of some forms of violence against women are particularly high in Africa. The problem is caused by a complex interaction of factors operating at multiple levels, including at the global level. Historical records show that acts of violence against women, including intimate partner violence and non-partner sexual violence, were perpetrated during the colonial era. During this period, perpetrators of non-partner sexual violence included colonial officers and troops under their command. Cases brought before colonial courts sometimes resulted in the conviction of the offender, but sentences were generally light. However, incidents of violence against women were mostly resolved within the family or community, with relatives and traditional leaders playing a central role.

The post-independence period has seen increased attention to violence against women. Activism by women's movements contributed to placing the issue on the agenda of states and of international organizations such as the United Nations. Sexual violence perpetrated by armed actors during wars in the 1990s also served to draw attention to violence against women. Consequently, most African countries have amended colonial-era rape laws and have adopted new legislation to address acts such as intimate partner violence, early marriage, and female genital mutilation. Many of them have also created specialized criminal-justice-sector institutions to address various forms of violence against women. These actions on the part of states have been influenced by women's movements and by pressure from international organizations such as the United Nations. While this demonstrates progress on the part of African states, there is a large implementation gap in most countries. Thus, girls and women rarely benefit from the progressive laws on the books. This demonstrates that there is much work that needs to be done to address violence against women in Africa.

Keywords: [violence against women](#), [gender-based violence](#), [women's movements](#), [gender equality](#), [police](#)

Overview of Violence against Women in Africa

Gender-based violence (GBV) describes “a range of violent acts mainly committed by males against females, within the context of women and girls [sic] subordinate status in society, and often serves to retain this unequal balance.”¹ Violence against women (VAW) is a subset of GBV and includes physical, sexual, verbal, and emotional abuse committed through acts such as rape, intimate partner violence or domestic violence, forced pregnancy, forced prostitution, human trafficking, female genital mutilation, sexual slavery, and early and forced marriage, among others.² While it is a global problem, the prevalence of some forms of this violence is particularly high in Africa. A 2013 study found that at 37 percent, the Africa, Eastern Mediterranean, and South-East Asia regions had the highest proportion of ever-partnered women who reported having experienced intimate partner violence in their lifetime.³ The figure was 30 percent in the Americas and 25 percent in the Europe and Western Pacific regions.⁴ Some forms of VAW are particular to certain regions and countries while others are ubiquitous. An example of the former is female genital mutilation, which is not concentrated in the countries of southern Africa, versus intimate partner violence, which is prevalent across the continent.⁵ Although there are differences across types of VAW, this violence affects victims physically and psychosocially. It affects women’s ability to earn a living and to socialize. In a study of intimate partner violence in the Democratic Republic of Congo, Anjalee Kohli and colleagues found that families in which intimate partner violence occurred were socially isolated and survivors reported being too weak to farm and provide food.⁶ Research conducted in postwar Liberia found that rates of posttraumatic stress disorder, major depressive disorder, and suicide ideation were significantly higher among female combatants who experienced sexual violence during the country’s civil war.⁷ In some instances, victims die as a result of this violence. In South Africa, where more research has been conducted on VAW than in most other African countries, a 2009 study found that intimate partner violence mortality rates far exceeded rates in the United States, Canada, and the United Kingdom.⁸ A 2017 study showed that at a rate of 1.7 per hundred thousand female population, women in Africa were most at risk of being killed by their partners. Indeed, the study revealed that “More than two thirds of all women (69 per cent) killed in Africa in 2017 were killed by intimate partners or family members.”⁹ These figures point to an epidemic of domestic violence and of gender-related killings.

While VAW is perpetrated in all countries, there is variation in the prevalence of various forms of this violence across Africa. Thus, some countries have higher levels of some or all forms of VAW than others. For example, 38.7 percent of ever-married girls and women between the ages of fifteen and forty-nine surveyed in Ghana reported having experienced either sexual, physical, or emotional violence, or all three of these acts.¹⁰ The figure was 48.6 percent in Kenya.¹¹ There is also variation within countries. Women in the Northern, Ashanti, Upper West, and Greater Accra Regions of Ghana were more likely to report having experienced each type of violence than women in other regions of the country. There is also evidence of rural-urban differences; the prevalence of intimate partner violence was slightly higher among women in urban areas of the country. The prevalence of various forms of VAW and the variation across countries cannot be divorced from the causes of this violence.

It is caused by an interaction of factors operating at multiple levels. The ecological framework identifies four levels: personal history (e.g., witnessing violence as a child), microsystem (e.g., male dominance in the family), exosystem (e.g., low economic status or unemployment), and macrosystem (e.g., rigid gender roles).¹² A key causal factor is gender power relations within the private and public spheres that accord more power to men and boys and thus anchor gender inequality within societies. Men use violence to punish women for not performing the gender roles that their societies have assigned to them. Therefore, women who do not cook,

clean, or subordinate themselves to their partners face a heightened risk of intimate partner violence. In a study of gendered violence in Tanzania, Hilde Jakobsen explained that “To be able to beat is to be in authority, and to be in authority is to be a man. Thus, beating to control is an enactment of being a man, of being the head of the house, of inhabiting the role of control that is a masculine role. In addition to enforcing gender, beating is doing gender.”¹³ This assertion of masculinity and policing of femininity is not limited to intimate partner violence. In South Africa, some men have subjected lesbians to “corrective rape,” which is perpetrated with the objective of “changing” the victim’s sexual orientation.¹⁴ Scholars have noted that this power inequality can also explain GBV against men. They have identified multiple masculinities, including hegemonic and subordinate masculinities and explain that violence, including sexual violence against men, is one tool that is used to reinforce hegemonic masculinity.¹⁵

However, as the ecological framework shows, gender inequality is only one of the many causes of VAW. Socioeconomic and political variables such as poverty and social fragmentation have also exacerbated VAW in some African countries. The end of slavery in the colonial period created tensions within homes and contributed to intimate partner violence.¹⁶ Since the early 1990s, armed conflict in Rwanda, Burundi, Liberia, Sierra Leone, the Democratic Republic of Congo (DRC), Sudan, and South Sudan, among others, has led to high levels of sexual violence. While girls and women have been disproportionately targeted, boys and men have also been victimized. The causes of this violence have been debated. On one hand scholars have argued that factors such as the recruitment mechanism of armed groups explain rape during civil wars.¹⁷ According to Dara Cohen, “Once a war has begun, there is no apparent relationship between gender inequality and rape during civil war.”¹⁸ On the other, scholars have countered that a “gendered analysis explains precisely why sexualized violence would be effectively used in societies where it is culturally taboo and associated with women as lesser subjects, not citizens.”¹⁹ Furthermore, the social fragmentation, increased poverty, and weak rule of law in the aftermath of violent conflicts have created conditions that foster many forms of VAW. Thus, in many countries, gender inequality interacts with factors at multiple levels to increase the likelihood that women will experience gendered violence. Some sources have documented these dynamics at play during the colonial era.

Violence against Women in Colonial Africa

Historical accounts have revealed the existence of violence against women (VAW) before and during the colonial period. However, forms of VAW were not extensively or systematically studied, thus there is a dearth of literature on the topic. Indeed, while acts of VAW (such as wife-beating and rape) were criminalized under colonial laws in certain countries, VAW was not recognized as a category of crime during colonialism. Furthermore, such incidents of violence were often viewed and interpreted through a deeply sexist and racial lens by European and North American scholars and the European administrators in the colonies.²⁰ This contributed to a distorted understanding of the causes and effects of, as well as attitudes toward, various forms of VAW. More contemporary analyses of these historical incidents have mostly avoided these pitfalls and have shown how intersecting power dynamics contributed to this violence.²¹

Intimate partner violence and non-partner sexual violence are two forms of VAW that have been studied in colonial Africa. Studies suggest intimate partner violence, where girls and women were the victims, was a feature of many communities. The records of colonial courts in French Sudan (Mali) between 1905 and 1912 reveal cases of abandonment and mistreatment, where mistreatment includes cases of physical and verbal VAW, as well as neglect.²² Emily Burrill and Richard Roberts state that mistreatment sometimes appeared in the records as “control over the terms of a wife’s mobility.”²³ Furthermore, the records show that physical violence often went “hand in hand” with verbal abuse.²⁴ In Liberia, a country that was not colonized but was settled by freed slaves and blacks who were born free in America, there are also historical accounts of intimate partner violence. In the southeastern part of the country, a wife risked a “sound beating” from her husband for reasons

such as: “disrespect and imprudence, disobedience, bad or indifferent cooking, barrenness, flirtation, refusal to marry (care for and live with) her husband.”²⁵

This physical violence sometimes resulted in the death of women. One case on record in a magistrate’s court in South Africa’s Eastern Cape revealed that a man’s murder of his wife was preceded by a “lengthy history of abuse.”²⁶ Indeed, in the colonial courts of Kenya and Nyasaland, “domestic violence was one of the most commonly attributed reasons for murder” from 1920 to 1956.²⁷

While men sometimes presented intimate partner violence as a normal and acceptable part of life in some communities, not everyone approved of this violence.²⁸ For example, records show that in the early 20th century in French Soudan, women sought divorce from their abusive partners.²⁹ In Liberia, women sought divorce to escape “continual” and “brutal” violence from their partners.³⁰ Furthermore, parents sometimes supported women in seeking separation and divorce in colonial and customary courts, demonstrating that while there were attempts (mostly by male community leaders) to present intimate partner violence as African culture, there was disapproval of the act in many communities. In some villages, there were strong norms against certain forms of violence and this sometimes encompassed intimate partner violence. In Kenya, there was a strong taboo against killing women in Kalenjin society while among the Kpelle of Liberia, it was a taboo to spill blood.³¹ This affected how such incidents were dealt with in colonial and customary courts.

Intimate partner violence was usually settled within the family or in customary courts, and the focus in these forums was on reconciliation. Relatives and traditional leaders agreed to separation and divorce when the violence was severe or frequent or when one or both parties were unwilling to reconcile. Intimate partner violence came up in courts presided over by colonial officials when the act was connected to cases of abandonment, murder, and divorce, among others. That is to say that women rarely reported intimate partner violence to the colonial courts. Instead, the matter usually came up in court when it was discussed in relation to another case; for example, when a woman sought divorce on the basis of intimate partner violence. However, it was not unusual for the court to doubt the woman’s account and to place a high burden of proof on her. Writing about French Soudan (1904–1912), Burrill and Roberts explain that courts were probably accepting of a certain level of beating to maintain order in the household.³² Thus, a woman had to prove serious abuse before she was granted divorce in the colonial courts.³³

Scholars have argued that there is a relationship between the end of slavery and the perpetration of intimate partner violence in the early colonial period.³⁴ This is because the end of slavery disrupted social and economic patterns in the domestic sphere, sometimes forcing women into roles they were not always happy to assume. Resistance to these new roles or failure to adequately perform the domestic duties once performed by slaves resulted in tensions and sometimes violence in the domestic sphere. A link between poverty and VAW during the colonial era has also been identified. In Kenya (1930–1956), most spousal murders occurred in communities that were undergoing serious socioeconomic pressures “in the form of land hunger, widespread hunger, increased poverty, and increased social differentiation.”³⁵ These accounts also show that the imperial project further placed women at risk of violence. This connection is even more visible and direct in the case of non-partner sexual violence.

There are accounts of non-partner sexual violence during the colonial era. This violence was perpetrated by civilians as well as by colonial officers and troops under their command. Court records from 1847 to 1902 in the Eastern Cape reveal the practice of *ukuzuma*—the act of having “sexual relations” with a woman while she is asleep.³⁶ According to Elizabeth Thornberry, “The parties involved were not family members, or husband and wife. In most cases, they had no prior intimate relationship.”³⁷ Sometimes, sexual violence was perpetrated during periods of political crisis. Archival materials expose sexual violence against Kikuyu women perpetrated by “African and British agents of the colonial state” during the Mau Mau rebellion of the 1950s in Kenya.³⁸ For example, in May 1953, “complaints were made regarding the ‘many abuses of the Home Guard,’ including rapes of women, while conducting screening in the Londiani Division of the Rift Valley Province.”³⁹ In 1954, three

British soldiers of the Royal Engineers were convicted of gang rape in Kenya while other cases were investigated. Women in police custody also risked being raped by policemen. Three hundred and seventy testimonies in documents in the African Archives of the Ministry of Foreign Affairs in Belgium reveal brutal violence perpetrated by colonial officials and sentries during King Leopold II's bloody rule of the Congo Free State (1885–1908).⁴⁰ The testimonies reveal sexual torture and rape committed by and under the command of Belgian colonial officials.⁴¹

In many communities, sexual violence was perceived as a gross violation and brought shame to the victim and her family. In some communities, women were blamed for this violence. While some victims wanted the perpetrators to be harshly punished, this rarely happened; some cases ended in the rapist being fined. Writing about *ukuzuma* in the Eastern Cape, Thornberry explains that rape cases were often tried in customary courts as a civil offence, because British officials thought the practice of fining the offender meant that the act was not a criminal offence. This perception influenced conviction and sentencing in rape cases. Skepticism of women's accounts also ensured that many perpetrators were not held accountable for their actions. However, in Kenya, during the Mau Mau rebellion, records showed a willingness in colonial courts to prosecute rape perpetrated by British officers more so than by members of the Kikuyu Home Guard.⁴² According to David Andersen and Julianne Weis, "Throughout the emergency years, the sentencing of Africans by British judges and magistrates almost certainly reflected their belief that rape was not held to be a serious offense."⁴³

While intimate partner violence and rape were not the only forms of VAW during the colonial era, they have been documented and studied more than other forms of the problem. Nonetheless, practices such as female genital mutilation and early and forced marriage were practiced during this period. In some countries, efforts were made to regulate and ban these practices.⁴⁴ The post-independence period has seen more attempts by the state to regulate behavior in the area of VAW.

Violence against Women in Post-Independence Africa

Even after most African countries gained independence, the legacies of colonialism rendered girls and women vulnerable to gendered violence. However, while various forms of violence against women (VAW) were documented in studies conducted in African countries, it was not until the early 1990s that the problem began to be more systematically studied across academic disciplines. During this time, activism by women's groups also placed VAW, particularly sexual violence against women in conflict, more firmly on the agenda of the United Nations (UN) and of other international organizations.

While sexual violence has been perpetrated in wars throughout history, including wars in Africa, news reports of mass rapes committed during the genocides in Bosnia and Rwanda placed the issue on the agenda of humanitarian agencies and generated policy and academic studies on the topic. This research demonstrated that sexual violence during armed conflicts was widespread, and while both men and women were victimized, the majority of victims were girls and women. Armed factions—both government and rebel—perpetrated mass atrocities against civilians in the conflicts in Liberia, Sierra Leone, Côte d'Ivoire, and northern Uganda. This violence is ongoing in the Democratic Republic of Congo (DRC), South Sudan, the Central African Republic, and Burundi. In these conflicts members of armed groups have subjected girls and women to rape, sexual torture, sexual slavery, forced prostitution, and other forms of sexual and physical violence. Out of 205 girls and women surveyed in Montserrado County in Liberia, 49 percent said that they had experienced at least one act of physical or sexual violence at the hands of combatants between 1989 and 1994.⁴⁵ A 2008 survey in Liberia also found that former combatants (both male and female) had higher rates of exposure to sexual violence than noncombatants.⁴⁶ Among females the rates were 42.3 percent to 9.2 percent, and among males they were 32.6 percent to 7.4 percent. These figures show that combatants faced a heightened level of sexual violence. They also underscore the degree to which men are victimized. Indeed, while much of the research has focused on

girls and women, there is evidence that armed groups have also perpetrated sexual violence against boys and men in conflict, including in those ongoing in the DRC and Darfur.⁴⁷ In a study of Darfur, Gabrielle Ferrales and colleagues argue that this violence emasculates men and boys through homosexualization, feminization, genital harm, and sex selective killing.⁴⁸

Though the literature on violence during conflict has focused on sexual violence perpetrated by armed groups, there is evidence that intimate partner violence—both physical and sexual—is also prevalent. In fact, in some conflicts, this type of violence, as well as physical and sexual violence perpetrated by relatives and other individuals known to the victim, is more common than violence by members of armed groups.⁴⁹ A 2008 survey conducted in Côte d'Ivoire showed that intimate partner violence was the most frequently reported form of violence against women after the first civil war ended: 20.9 percent of respondents experienced this violence.⁵⁰ In this survey, of the 32 percent of women who reported having experienced sexual violence since the age of fifteen, 24 percent said the act was committed by an intimate partner. Furthermore, female respondents were more likely to report being victimized than male respondents. As is often the case, there was variation in the levels of violence across groups and regions. A 2010 study in Côte d'Ivoire revealed that the rates of intimate partner violence were higher among women who identified as Yacouba, Guere, or Dioula.⁵¹ Kinship structures that have traditionally provided protection for women were eroded during the Ivorian conflict, rendering women more vulnerable to violence and less likely to receive support from those around them.⁵² Violent conflicts also disrupt the traditional leadership structures and the traditional institutions that have adjudicated cases of violence. The high levels of poverty during conflicts also place women at a heightened risk of intimate partner violence. This is exacerbated by the ease of access to weapons. Thus, violent conflicts and post-conflict socioeconomic conditions have rendered women particularly vulnerable to both physical and sexual violence.⁵³

The violence has grave physical and psychosocial consequences. Survivors sometimes have to live with debilitating injuries and illnesses that affect their ability to work and socialize. For example, both male and female combatants who experienced sexual violence report higher levels of posttraumatic stress disorder, major depressive disorder, and suicide ideation.⁵⁴ Women and children also face an increased risk of contracting HIV through sexual violence.⁵⁵ These problems do not end with wars. In northern Uganda, children born out of rape committed by troops of the Lord's Resistance Army faced rejection, violence, stigmatization, marginalization, and "issues of identity and belonging."⁵⁶ The findings were similar in Rwanda.⁵⁷ Relatedly, levels of intimate partner violence were high in displacement camps in Uganda.⁵⁸ In a 2012 survey (a year after the civil war) of women in an ethnically diverse and low income community in Abidjan, 53.6 percent of female respondents reported exposure to physical, sexual, or emotional violence by an intimate partner in the previous year.⁵⁹ High levels of poverty and alcohol and drug abuse in the aftermath of violent conflicts have exacerbated girls' and women's vulnerability to violence. In addition to poverty and drug and alcohol abuse, postwar intimate partner violence has also been attributed to the new gender roles that women assume as a result of violent conflict. This gender disruption sometimes leads to violence within the home. Cardoso summarizes the causes of postwar intimate partner thus:

Structurally, urban poverty and with it high male unemployment, food insecurity, financial stress, and cramped housing played a role in women's experiences with partner violence. Socially, fractured social networks, changing gender roles and growing tensions between traditional gender norms and those of the modern city were discussed as important contributors to IPV.⁶⁰

However, VAW, including rape and intimate partner violence, is a problem even in countries that have not experienced extensive violent conflict. This has been clearly demonstrated through the demographic and health surveys conducted across the continent. Furthermore, in addition to rape, girls and women have been exposed to other forms of violence, including human trafficking, early and forced marriages, forced pregnancies, and so on. Africa is a source and destination of people for trafficking. Girls and women are targeted for domestic servitude, prostitution, and for the sale of organs. Large numbers of Nigerian women

have been trafficked to Europe, particularly Italy, where traffickers and gangs have forced some of them into prostitution. Girls and women have also been subjected to female genital mutilation in some countries. In Africa, Egypt, Sudan, Somalia, Mali, Guinea, and Sierra Leone have the highest percentage of girls and women between the ages of fifteen and forty-nine who have undergone female genital mutilation.⁶¹ The reasons for this practice are complex, and it affects girls' and women's sexual responsiveness and their health in multiple ways.⁶² It has also led to severe injuries and death in some instances. Women's and international organizations have adopted a variety of strategies to change community attitudes toward these and other gendered practices.

The Response to Violence against Women in Africa

Violence against women (VAW) has generally been dealt with within the family. When disclosed, it has mostly been to community and religious leaders. Although attitudes differ according to types of violence, the state has been called on and has intervened in only a minority of cases in most countries. Nonetheless, there has always been action within countries, mostly by women's organizations, to address this problem. At the international level, the late 1970s saw increasing attention to VAW, particularly intimate partner violence and rape. Thus, since the end of colonialism, a variety of instruments and initiatives have been introduced at the national and international levels to address gender-based violence (GBV), most of which specifically target VAW.

Women's organizations, which sometimes form part of women's movements, have been at the forefront of the efforts to address various forms of VAW. They have lobbied the government and international actors such as the UN and have also worked with them in adopting and implementing policies. Women's movements in Africa engaged in transnational activism and pressured the UN to place VAW on its agenda. Women's organizations from Africa participated in the World Conference of the International Women's Year in Mexico City in 1975 and in subsequent conferences. During the second wave of democracy in the 1990s, many women's organizations became decoupled from the ruling party, where previously, they had formed a part of the women's wing. Thus, in many countries, including Ghana, women's organizations became more critical of the state and demanded action on the issue of violence against women. This period also saw increased transnational activism by women's movements. For example, women's organizations from Africa participated in the 1995 Fourth World Conference on Women in Beijing, where VAW was one of the issues on the agenda.

Activism within some countries was strong during this time. However, this was not the case in all countries. For example, at the Third World Conference on Women held in Nairobi in 1985, the Liberian government delegation co-sponsored a draft resolution on sexual violence against women and children. Sponsors of the resolution, who recognized that women and children were frequently abused, urged "governments to take appropriate steps to protect, in an effective manner, women and children from any form of violence."⁶³ The sponsors "made several progressive proposals for addressing the problem, including the introduction of legislative measures that would not victimize and criminalize the victims. Liberia also co-sponsored a draft resolution on Domestic Violence against Women at the Nairobi Conference in 1985."⁶⁴ However, their involvement in these initiatives on the international stage did not translate into major policy, programmatic, or institutional changes in the country. In fact, VAW was not recognized as a major policy problem by the government.⁶⁵ Indeed, due to the strength of the women's movement and other social, political, and economic factors, activism produced varied results across the continent. However, attention to VAW changed drastically in some countries due to internal politics but also because of external phenomena. One political issue that brought public and policy attention to VAW was sexual violence during war.

Sexual violence perpetrated by armed actors during conflict also shone a humanitarian and scholarly spotlight on VAW. The UN Security Council (UNSC) Resolution 1325 (2000) was adopted in response to this violence. The resolution called on all actors in a conflict to "protect women and girls from gender-based violence, particularly rape and other forms of sexual abuse, and all other forms of violence in situations of armed conflict."⁶⁶ It also

called on states to hold accountable perpetrators of this violence. This resolution marked the first time that an international instrument was created specifically to address sexual violence during conflict even though the problem has been documented in many wars, including wars in Africa.⁶⁷ Furthermore, transnational activism involving civil society organizations in Africa was important to the adoption of the resolution. Namibia held the presidency of the UN Security Council during this period. Since the adoption of UNSC Resolution 1325, there have been more policy and institutional initiatives to address VAW internationally and in Africa.

Domestically, countries have responded to VAW by adopting and amending laws and policies and by creating new institutions and programs in several sectors. As at January 2018, all African countries had passed a rape law. However, only twenty-three countries had criminalized marital rape. In many countries, the marital rape exemption is a legacy of British colonial law.⁶⁸ Progress in adopting a domestic violence law has been slower. As at January 2018, twenty-one countries did not have an intimate partner violence or domestic violence law. One such country is Liberia, in which intimate partner violence is prosecuted as simple or aggravated assault. Nonetheless, there has been progress in the creation of specialized criminal-justice-sector institutions. Sierra Leone, Côte d'Ivoire, Liberia, Ghana, and South Africa, among others, have created specialized units in the police force and courts to exclusively handle cases of gender-based violence. Liberia has created the most such institutions: a specialized court for prosecuting sexual violence (Criminal Court E), the Women's and Children's Protection Section (WACPS) of the Liberia National Police Force (LNP), the Sexual and Gender Based Violence Prosecution Unit, and the Gender Based Violence Unit, all within the Ministry of Justice. The women's movement worked closely with the UN and other international partners to lobby the government to create these institutions.⁶⁹ Some countries have also created shelters for survivors, but studies have shown that they are generally underfunded and the services they provide inadequate.

In some cases, women's organizations have been actively involved in the process of passing laws and creating institutions and programs. Research has shown that the adoption of women-friendly laws has been more likely in countries with a strong women's movement and has been aided by changing international norms.⁷⁰ In Ghana, the Domestic Violence Coalition, which included women's organizations, pressured the government for the adoption of the country's 2007 Domestic Violence Act.⁷¹ Similarly, the women's movement in Liberia played a key role in the 2005 amendment of the country's rape law.⁷² In South Africa, the women's movement has spearheaded legal and constitutional changes to address women's rights, including gender-based violence.

However, these initiatives have been plagued by several challenges. Some countries are yet to pass laws, and where laws have been passed they have sometimes been found to be weak. Most countries also have a major implementation gap. Thus, the laws on paper fail to benefit people on the ground. Therefore, while some countries have strong domestic violence and rape laws, these acts are rarely reported, due to many barriers, and when reported, they rarely lead to arrest and prosecution.

However, even with the adoption of laws and creation of specialized institutions, the victims of gendered violence have predominantly been women, and while there are many exceptions across and within countries, this violence has been trivialized by communities and not been treated as a priority policy issue area by the state. Even though there have been major changes since the colonial period, communities have generally perceived intimate partner violence as a private act that does not require the involvement of outsiders. Thus, this violence is often not disclosed to anyone and when it is, it is to relatives or to the leaders of customary institutions. However, evidence suggests that people are increasingly reporting VAW to the police. In some countries, the reporting of intimate partner violence to the police has increased significantly. This has coincided with activism, international initiatives, and government actions.⁷³ However, while women are increasingly reporting intimate partner violence, they do not necessarily seek the arrest and prosecution of their partners.⁷⁴ Indeed, interviews in Liberia revealed that women wanted the police to frighten abusers away from committing the act.⁷⁵ Many women face strong pressure from their family and community not to report intimate partner violence to the police. While women were more likely to report rape, they also faced pressure from relatives and their communities not to involve the police in the case. However, despite these pressures,

women interviewed in Côte d'Ivoire were more likely to report rape to the police when they received support from relatives and close friends, even in the face of strong backlash from the community.⁷⁶

However, community pressure is not the only deterrent from reporting. The behavior of state agents has contributed to the problem. Across Africa, the police and courts are some of the least-trusted institutions.⁷⁷ Citizens mostly view these institutions as corrupt and ineffective.⁷⁸ Police have been known to trivialize VAW and have even blamed women for their victimization. Police and court officials have also asked victims to pay unapproved fees, which has proven to be a barrier for poor women. Some of this behavior has even been observed in specialized criminal-justice-sector institutions. Combined with the poor access to health services and socioeconomic support in many countries, female victims of gendered violence face numerous obstacles that exacerbate the suffering that they have already experienced. Thus, while there is increased awareness of different types of VAW, and civil society organizations, international organizations, and states have taken steps to prevent this violence, implementation is often weak and both male and female victims face many barriers to justice.

Violence by Women

While women are disproportionately the victims of gendered violence, they also use violence within and outside of the home. Within the home, women also commit acts of intimate partner violence, although the overwhelming majority of these incidents are perpetrated by men.⁷⁹ However, women's use of violence is not limited to the home. Women have provided material and other forms of support to armed groups. For example, Nuba women supported soldiers of the Sudan People's Liberation Army with food and water during the conflict in the Nuba Mountains of Sudan between 1986 and 2005.⁸⁰ Women have also participated in violence by joining armed groups. In Zimbabwe, female fighters fought alongside men in the country's anti-colonial war for independence. Research has shed light on the complexity of women's motivation for participation in violence during wars.⁸¹ It shows that women's motivations for participating in warfare are varied and include being forced into joining armed groups, to protect themselves from violence, and to seek revenge. However, women's participation in armed conflict has often been ignored and underestimated in the academic literature and in practice. In a study of Sierra Leone, Megan MacKenzie argued that men were securitized post-conflict while women were desecuritized, affecting how they were treated during the disarmament, demobilization, and reintegration (DDR) process.⁸² She argues that the DDR program reconstructed female fighters as "'wives,' 'camp followers,' or 'sex slaves' in order to desecuritize them and to distinguish them from securitized male soldier subjects," rendering the program inadequate.⁸³ Boko Haram's use of female suicide bombers has placed the spotlight on women's participation in violent conflict in Africa. One reason given for the use of female suicide bombers is that they do not attract attention.⁸⁴ This practice suggests that gendered expectations about how men and women behave is being exploited in this context. Indeed, gender norms play an important role in women's participation in violence and how they are perceived and treated after.

Discussion of the Literature

The term violence against women (VAW) did not become commonplace in the literature until relatively recently. However, specific forms of VAW have been covered in the historical literature. Scholarly works produced before and during the colonial period mostly did not focus on specific forms of VAW; that is to say, entire books were rarely written on rape or intimate partner violence. However, these and other forms of violence were sometimes mentioned, and discussed, in these early works. These studies generally did not systematically study aspects of the problem but rather noted its occurrence and sometimes its causes and effects. One such example is *Tribes of the Liberian Hinterland: Report of the Peabody Museum Expedition to Liberia* published in 1947.⁸⁵ The authors analyzed gender relations (without using the term) within Liberian ethnic groups and studied how these relations produced intimate partner violence, then termed wife-beating. These and other publications of this period provided insight into gender relations and VAW. However, publications produced during this period often analyzed issues through a racial lens—a practice that was the norm in much of the historical literature. Consequently, evidence of various forms of VAW was likely to be presented as “African” problems and employed to substantiate racist ideologies. This trend has become less common over time, although it has not been completely eliminated.

The late 20th century saw increased attention to VAW. In the 1970s and 1980s, scholars began to study the incidence, causes, and effects of various forms of VAW in African countries. Some of this work was connected to the activism of women’s movements who initiated and led efforts to prevent and punish some forms of VAW. During this time, scholarship also began to cover issues such as human trafficking, female genital mutilation, and forced marriage, which were being recognized as gendered violence. Widespread sexual violence during the conflicts in the Balkans, and to a lesser extent, the genocide in Rwanda, drew humanitarian and scholarly attention to the problem. This saw more articles and some books written on sexual violence during conflict. These works sought to describe and explain this violence. However, it has been argued that there has been a fetishization of the problem.⁸⁶ Sara Meger explains that with fetishization, “sexual violence is decontextualized from local/global power relations and from the continuum of violence and homogenized as a discrete phenomenon (identification of an existential threat through the speech act).”⁸⁷ Another issue is that the focus has mostly been on sexual violence against women. Thus, even though other forms of VAW are prevalent during violent conflicts, they have been understudied. Similarly, even though boys and men also experience sexual violence—though at lower levels—they have been almost missing from the literature. Scholarship over the last five years has sought to address this imbalance, but there is much work that needs to be done to understand and explain the victimization of boys and men in conflict-affected as well as non-conflict-affected countries in Africa.

Another innovation has been the use of statistical methods to study VAW. Prevalence surveys, including national demographic and health surveys (DHS), have made data available on various forms of VAW. These surveys have covered the occurrence of specific forms of violence as well as attitudes toward them. For example, DHS show that rates of justification of intimate partner violence are high and that in most countries, women are more likely to justify this violence than men.⁸⁸ These surveys have made it possible to get a more accurate understanding of the scope of the problem in many countries and to make comparisons within and across countries. They also allow scholars to measure changing prevalence and attitudes toward VAW and to explain the causes of this violence.

The study of VAW has often gone hand-in-hand with the study of women’s movements in Africa. This is because of the central role that women’s organizations and movements have played in advocating for government and international actors to put in place measures that can prevent the violence, hold perpetrators accountable, and provide much-needed services to survivors. Thus, the literature on VAW has developed closely with the literature on women’s organizations and movements in Africa.⁸⁹ This has enabled scholars to document and analyze the strategies that women’s organizations and movements have used to pressure states

and international actors to place VAW on their agenda and to adopt policies accordingly. Studies have also shown that women's organizations impact the implementation of these policies by lobbying for the creation of specialized criminal-justice-sector agencies and by training, monitoring, and collaborating with law enforcement officers in these agencies.⁹⁰

The literature also points to interesting directions for future research. First, there is a gap in understanding the implementation of gender-based violence laws and policies. With a few exceptions, there has not been much work done on implementation, thus we do not know enough about when, how, and why states implement gender-based violence laws and policies.⁹¹ Scholarship also points to the need to understand how and why gender norms and relations are changing across Africa and what this means for VAW. Research conducted in Côte d'Ivoire has shown that victims of rape as well as communities are more willing to report the crime to the police.⁹² This willingness has been attributed to the experience of sexual violence during the country's civil wars.⁹³ It has also been noted that the end of violent conflict has disrupted gender norms and increased women's vulnerability to gender-based violence. This theme needs to be explored more systematically in African countries. The degree to which the global political and economic order—as manifested through colonialism, capitalism, and other global processes—has affected VAW in Africa is also an area that needs to be further explored.⁹⁴ Research has drawn attention to globalization and VAW in the Democratic Republic of Congo (DRC).⁹⁵ These and other links provide important insight into VAW and need further attention. The factors driving women's participation in violence and the effects of this participation also deserve more attention. In conclusion, while the literature on women and violence in Africa has advanced significantly since the colonial period, there are still aspects of the problem and states' and societies' responses to it that are not well understood. Therefore, there are opportunities for important and interesting work in this research area.

Primary Sources

National archives contain information on violence against women (VAW) in some African countries. This material mostly discusses various forms of VAW that occurred in the course of social, political, and economic events. Thus, this violence by itself is often not the focus of these records. Nonetheless, they lend important insight into some forms of this violence. Some of these archives are searchable online and include [Digital Innovation South Africa](#), the [Historical Research Papers Archives](#) of the University of the Witwatersrand, the [Kenyan National Archives and Documentation Service](#), and the [Archives and Special Collections](#) of the School of Oriental and African Studies. Andersen and Weis in their study of sexual violence during the Mau Mau rebellion relied on the "Hanslope Disclosures," which contain nearly twenty-three thousand files and cover thirty-six former British colonies, including Kenya. According to the authors, these files "have now been transferred to The National Archive (hereafter TNA), Kew, and have been released under the category "Migrated Archives," designated as TNA FCO 141."⁹⁶ Biographies written by women also recount sexual and other forms of gendered violence. This includes Wambui Waiyaki Otieno's *Mau Mau's Daughter: A Life History*.⁹⁷ She recounts brutal serial rape committed by a British officer at a detention camp in 1960.⁹⁸

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